STATE

Vs

LORDSHARE NDAVAMBI

IN THE HIGH COURT OF ZIMBABWE.
NDLOVU J
BULAWAYO 06 MAY 2026

Review Judgment

NDLOVU J: The conviction in this matter is unsafe and should be vacated. Speedy trials are welcomed by any judicial officer. However, speedy trials must not come at the expense of an accused person's rights to a fair trial. The attendant danger is that overly speedy investigations and prosecutions may compromise the cause of justice, not only for the accused but also for the victim. The administration of justice will inevitably be the worst sufferer. There is a need for moderation. Basics must not be lost sight of or sacrificed at the altar of statistics, lest injustice prevail. The record of proceedings in this matter was placed before me in terms of Section 57(1)(a) of the Magistrates Court Act, *[Chapter 7:10]*

THE BACKGROUND.

1. On Thursday, 02 April 2026, the complainant's mother was involved in the motherly chore of bathing the complainant and her sibling. She made a discovery that disturbed her; she observed that their vaginas were swollen. She, as any mother would, asked them what the cause could be. The children aged about 5 years and the other 8 to 9 years old told their mother that they had been sexually violated by their uncles, that is to say, the accused person and his sibling. Both the accused, who is 19 years old, and his 17-year-old sibling are the complainant's paternal uncles.

2. On Tuesday, 07 April 2026, the complainant in this matter, an 8- to 9-year-old, was taken to the hospital for a medical examination. The reason given for this delay is that 3 to 6 April 2026 was an Easter holiday. That is rather surprising and disturbing, as Police Stations and Public Hospitals do not close on public holidays. A nurse who

examined the complainant at the hospital noted that the complainant had a vaginal discharge and a tear at “11 o’clock”.

3. On 08 April to 09 April 2026, the accused was in the dock, undergoing a trial on two counts of rape and was unrepresented. The allegations were that on dates unknown to the prosecution, on two occasions, during the month of March 2026, the accused had raped the complainant.

4. At the time of his arrest, the accused raised an alibi. His response to the charge was that he did not commit the alleged offences, and in explanation of his defence, he said he is a Form Four student. He is a Day Scholar. He departs home for School every day around 5 am and returns home between 6 pm and 6:30 pm. It was therefore impossible for him to have raped anyone at home around 4 pm. The State evidence was that the offence had occurred on both occasions between 4 pm and 4:30 pm before the Schools closed for the first term in April 2026.

5. The investigating officer confirmed the timely raising of the accused's alibi. Strangely, in my view, she told the court that because the Schools are now closed, she did not investigate the alibi. Stranger still, the trial Magistrate accepted that as an explanation for the investigating officer's violation of the law and went on to convict the accused.

THE MISDIRECTION

6. In convicting the accused, the trial Magistrate, with respect, placed upon himself the prosecution’s job notwithstanding the glaring gaps and omissions in the evidence of the State. It is for the State to allege specifically or in general terms when the offence was committed. It is not for the accused to answer that question, as the trial court appears to have reasoned in its judgment in this matter. The trial Magistrate's permutations in his judgment as to when the offence was possibly committed were unnecessary and misplaced. With respect, the learned Magistrate, without reason or basis, in his judgment supplemented and filled in the gaps left open by the State witnesses in the State’s evidence.

7. While reliance on what he called "other evidence" *per se* may be appropriate, it must be contextualised in any given matter. In this matter, the date and days of the alleged sexual violations were not specifically established. They were unknown to the prosecutor and remained unknown to everybody. To expect the accused to provide those dates in proving his alibi was a misdirection. An accused person bears no obligation to prove his alibi. All he has to do is to lay an evidential basis for it. It is the obligation of the State machinery to investigate the alibi.

8. It cannot be that an individual should be convicted of a serious crime like rape and be sent away for a long time on the basis that an 8 year old child pointed at him as the cause of her vaginal discharge [which medical science tells us that it may be caused by, among other things, poor hygiene, early puberty and irritants like soap and bubbles], and a vaginal tear [which among other things may be caused by severe irritation due to poor hygiene]. All this is happening in the face of a reasonably possible true uninvestigated *alibi*.

9. For a conviction to follow in such circumstances, the timely raised alibi must first be investigated and be found to be beyond a reasonable doubt false. The common-sense requirement to exercise caution in analysing the evidence of a child has not been outlawed in this jurisdiction

10. The moment two reasonable inferences regarding the facts of a matter, the benefit lies in favour of the accused. Once there is a reasonable doubt from the facts of the matter, an accused person must be set free. It is not the test in a criminal trial to say, "Why would the complainant lie?" It is not for the accused person to answer that question. He can only guess why the complainant would lie, and he has no obligation to make that guess or guess it correctly, and neither should he concern himself with the complainant's motive.

11. It is one thing for a complainant to say "X did this to me". Indeed, that statement goes a long way toward supporting a credibility finding regarding him or her. But *anybody* can say "X did this to me". What matters is whether or not that statement or allegation has been proven beyond a reasonable doubt by evidence besides the mere mention by the complainant that "X did this to me".

12. Where the accused denies what it is alleged he did, his denial must not be taken on face value. For his denial to sustain, it must be shown on a good basis that his explanation is reasonably possible true. That determination must be made in consideration of the totality of the evidence adduced by both the State and the defence.

13. This matter ought not to have been fast-tracked in its circumstances. Full and comprehensive investigations ought to have been done before putting the accused on trial. It is a matter that had all the potential to be an open-and-shut case against either party. The investigations were unfortunately bundled.

14. Our law and the cause of justice are clear; rather than incarcerate an innocent man, let a guilty man walk free. Resultantly, in terms of Section 29(2) (b) of the High Court Act, *[Chapter 7:06]*, the conviction is quashed, and the sentence imposed by the court *a quo* is set aside. and substituted with the following.

ORDER

1. The judgment of the court a quo is hereby quashed and substituted with the following;

   "The accused is found Not Guilty and is acquitted on BOTH Counts."

2. A Warrant of the Accused's Liberation must be issued immediately.

NDLOVU J: ……

M. DUBE J:……. *Agrees*

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